

File No.: EXP202310841

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed on April 11, 2024, by A.A.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated March 1, 2024, and based on the following FACTS

FIRST: On March 1, 2024, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202310841, in which it was agreed to uphold for formal reasons the claim for the exercise of rights made by the appellant against BANCO BILBAO VIZCAYA ARGENTARIA, S.A. (hereinafter, the respondent).

SECOND: The resolution now being appealed was duly notified to the appellant on March 7, 2024, as evidenced by the acknowledgment of receipt in the file.

THIRD: The appellant has submitted a recourse for reconsideration to this Spanish Agency for Data Protection, in which they essentially state the following: According to the appellant, their proposal to open a sanctioning procedure against the respondent was not taken into account in the resolution. Furthermore, they believe that the object of their claim and their allegations were not sufficiently explored.

LEGAL GROUNDS

I

Competence

As a preliminary matter, it should be noted that the new document submitted by the appellant has not been classified as a recourse for reconsideration. However, section 2 of article 115 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), establishes that the error or absence of classification of the recourse by the appellant shall not be an obstacle to its processing, provided that its true nature is deduced; therefore, the submitted document will be processed as a recourse for reconsideration.

The Director of the Spanish Agency for Data Protection is competent to resolve the present recourse, in accordance with the provisions of article 123 of the LPACAP and article 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD).

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II

Response to the allegations presented

Regarding the statements made by the appellant, it should be noted that both the request, rights of access and deletion, as well as the allegations submitted were taken into account when resolving the matter.

Thus, the allegations were reflected in the resolution:

“...That the respondent has not provided the authorization to use their data and that they have also not provided information about the details of the debt. Therefore, according to the claimant, the respondent has been providing their personal data to companies of financial solvency without their consent. The claimant concludes by stating that if no sanction is imposed for the respondent's behavior, it could set a precedent and lead to malpractice (...) it should be noted that the claimant in their allegations presents a series of objections to the response received. Objections that,

once analyzed, we consider do not alter the fact that the requested rights have been addressed in accordance with data protection regulations...”

Regarding the appellant's proposal in this recourse to open a sanctioning procedure, it should be noted that it is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure, and consequently, the decision on its opening, with no obligation to initiate a procedure based on any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the present procedure, the guarantees and rights of the claimant have been duly restored.

III

Conclusion

Examined the recourse for reconsideration presented by the appellant, it does not provide new facts or legal arguments that allow for a reconsideration of the validity of the contested resolution, therefore it is appropriate to agree to its dismissal.

In view of the cited provisions and others of general application,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the recourse for reconsideration filed by A.A.A. against the Resolution of this Spanish Agency for Data Protection issued on March 1, 2024, in file EXP202310841.

SECOND: TO NOTIFY this resolution to A.A.A.

In accordance with the provisions of article 50 of the LOPDGDD, this

Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure, a contentious-administrative appeal may be filed within two months from the day following the notification of this act, as provided in article 46.1 of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of the aforementioned legal text.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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